

MARTINEZ VS. PARSON

CASE NUMBER: 25CV-0208252

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 15, 2026 to Plaintiff Timoteo Martinez and counsel Legal Needs, APC for failure to timely serve Defendant as required by California Rules of Court, Rule 3.110(b). “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). The Complaint in this matter was filed on July 22, 2025 and no Proof of Service of Summons has been filed. Plaintiff filed a late response to the OSC explaining that Plaintiff is engaged in settlement discussions and is also working diligently to effectuate service. Plaintiff requests a 60-day continuance. The OSC is **DISCHARGED**. No sanctions will be imposed. However, the Court expects proof of service to be on file no later than the next review date. This matter is continued to **Monday, August 3, 2026 at 9:00 a.m. in Department 63** for review regarding status of service. **No appearances are necessary on today’s calendar.**

IN RE: MEIER

CASE NUMBER: 26CV-0210082

Tentative Ruling on Petition for Change of Name: Petitioner Denae Ann Meier seeks to change her name to Dean Ann Cortazzo. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

PEOPLE OF THE STATE OF CALIFORNIA VS. MCCON

CASE NUMBER: 25CVG-02609

Tentative Ruling on Motion to Set Aside Summary Judgment Discharge Forfeiture and Exonerate Bail: Defendant United States Fire Insurance moves to set aside summary judgment, discharge forfeiture, and exonerate bail. No opposition has been filed. A nearly identical Motion was filed in this matter on January 27, 2026. It was on calendar for hearing on February 23, 2026 and again on April 27, 2026. Both times, the Court informed Defendant that personal service on the County was necessary in order for the motion to proceed. The Motion was denied without prejudice. Defendant filed this Motion on May 6, 2026. There is no proof of service indicating that the County has been personally served. The motion is **DENIED** without prejudice. The proposed order will be modified.

PONCIANO, ET AL. VS. MARX, ET AL.

CASE NUMBER: CVCV20-0194371

Tentative Ruling on Motion for a New Trial: Defendants move for a new jury trial. Plaintiffs oppose the motion.

A jury trial as to damages ended in a verdict for Plaintiffs on January 15, 2026. Judgment was entered on March 30, 2026. Defendants filed the present Second Motion for a New Trial on May 1, 2026. Notice of Entry of Judgment was filed on April 17, 2026. As a preliminary matter, the motion was timely made per CCP § 659(a)(2). The burden of proof is on the moving party who must establish their position by a preponderance of the evidence. *Price v. Hibbs* (1964) 225 Cal. App. 2d 209, 215.

Merits. The grounds upon which a verdict may be vacated are enumerated in CCP § 657 which reads, in part:

The verdict may be vacated and any other decision may be modified or vacated, in whole or in part, and a new or further trial granted on all or part of the issues, on the application of the party aggrieved, for any of the following causes, materially affecting the substantial rights of such party:

...

5. Excessive or inadequate damages
6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law.
7. Error in law, occurring at the trial and excepted to by the party making the application.

CCP § 657.

Defendants Notice of Motion identifies three grounds for a new trial; specifically, excessive or inadequate damages, insufficient evidence and an error in law. CCP § 657(5-7). Defendants argue that the Court misinterpreted or misapplied the 1996 Stipulated Judgment and that the prior 1924 and 1935 Decrees provided Defendants with the right to enter Plaintiffs property. Based on that purported right of entry, Defendants contend that it was an error in law to find a trespass. The Court's May 30, 2026, Judgment incorporated a prior ruling on Plaintiffs' Motion for Partial Judgment Notwithstanding the Verdict. That ruling addressed the prior Decrees and Stipulated Judgment and found that the document did not give Defendants the right to construct new irrigation and that Defendants had "no authority to add structures such as log or riffle and they had no authority to enter and damage Plaintiffs' property in whatever way they choose as long as it related to their irrigation." Defendants provided no authority to show that the documentations were misinterpreted by the Court. Accordingly, Defendants have failed to meet their burden to show an error in law. An independent review of the Decrees and Stipulated Judgment also does not show there was any error in law in the Court's prior interpretation. As for the issues of excessive damages or insufficient evidence, Defendants did not address either issue in their memorandum of points and authorities. The Court finds that Defendants have not established an error in law, excessive damages or insufficient evidence that would warrant a new trial.

Sanctions. In their opposition, Plaintiffs request sanctions in the amount of \$3,045 pursuant to CCP § 128.5. Plaintiffs take the position that the sanctions are warranted based on the frivolous nature of the motion. While the Court ultimately disagrees with Defendants' position, there has been an insufficient showing that the motion was frivolous or made in bad faith to warrant sanctions. The request for sanctions is denied.

The motion is **DENIED**. A proposed order was lodged with the Court which will be modified to reflect the denial.

SCHJOTH, ET AL. VS. LYNCH
CASE NUMBER: 25CV-0208162

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 6, 2026 to Plaintiffs Timothy James Schjoth, Zachary Kirk, and Christopher Schjoth and counsel Law Offices of Willoughby & Associates for failure to timely seek entry of default as required by CRC 3.110(g). "If a responsive pleading is not served within the time limits specified in this rule and no extension of time has been granted, the plaintiff must file a request for entry of default within 10 days after the time for service has elapsed. The court may issue an order to show cause why sanctions should not be imposed if the plaintiff fails to timely file the request for the entry of default." CRC 3.110(g). Proof of Service of Summons was filed on October 14, 2025 reflecting service on Defendant Nicholas David Lynch on October 1, 2025. Default should have been entered over six months ago. Plaintiff did not file a written response.

Without sufficient excuse for the delay, sanctions are imposed in the amount of \$250 against Plaintiff and counsel. The clerk is directed to prepare a separate Order of Sanctions. **An appearance is necessary on today's calendar to explain the delay.**